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[00:09:06] Council come to order, Mr. Clerk. Ms. Speaker, today's calendar for Saturday the 14th, we have conference reports that are now coming in. I think we have about 70 and I think there's something about three dozen-ish still out there and a handful that we've already been notified that aren't coming back.

[00:09:29] So picking up and just working through them numerically under the first category, House bills in conference. We've received a conference report for House Bill 67. This conference report relates to directing the director of the Department of Energy to identify and develop training resources to advance workforce development in the offshore wind industry.

[00:09:50] Conference report is available to the members via the IHOD. It's available on LIS to the public. And the conference report is now before you. DELEGATE FROM NORFOLK, DELEGATE GLASS. Gratitude, Mr. Speaker. I rise for a request. DELEGATE HAS THE FLOOR.

[00:10:06] Gratitude, Mr. Speaker. I request that we go back to the morning hour, first morning hour for the purposes of a motion. The delegate has the floor. Okay. Gratitude, Mr. Speaker. I, well, lost my train of thought real quick. I move that when the House adjourned today, that adjourn in the honor and memory of Alexander Kamari Pai, and I request to speak to that motion, Mr. Speaker.

[00:10:29] The delegate has the floor. Okay, gratitude, Mr. Speaker. So before we adjourn today, I rise in honor and memory of the remarkable young man, Alexander Kamari Pai. If his family is here, they can please rise. Alexander was what you like to call a quiet light. The kind of person, I mean, like not out loud, not looking for attention, but the person that walks into a room and somehow people feel safer, calmer, and seen.

[00:11:01] Alexander lived with sickle cell disease, a pain that many people never really saw. And for those of us who live with invisible illnesses, we understand that kind of quiet strength. The world may not always see the struggle, but it certainly feels the compassion that it produced.

[00:11:22] Alexander showed up for others. He would sit behind his best friends in crisis, protect children who were being picked on, welcome people into their home when they had nowhere to go. In fact, his mother joked that their house started to feel like a hotel because if you needed a place to belong, Kamari made sure you had one.

[00:11:41] He loved music, and especially Anita Baker. One lyric that reminds me of the spirit that he carried was, with all my heart, I will always love you. And that was Kamari, love in action. He showed us leadership wasn't always loud.

[00:11:59] Sometimes it was gentle, sometimes it was quiet, but it was always felt. So today, on behalf of the Pai and Edwards family, I ask that when this body adjourns, we do so in the loving memory of Alexander Kamari Pai, a quiet light who reminded us to care for one another.

[00:12:18] The delegate from Norfolk, Delegate Glass, moves that when the House adjourned today, it do so in the honor and memory of Alexander Kamari Pai. All those in favor of the motion will rise. The motion is agreed to.

[00:12:39] Delegate from Virginia Beach, Delegate Fagans. Thank you, Mr. Speaker. HB 6-7 Offshore Wind Workforce Development now matches the original version that passed this House, ensuring Virginia's workforce is prepared to meet the demands of this growing industry.

[00:13:01] I move adoption of the conference report. Shall the conference report be agreed to?

[00:13:20] Clerk will close the roll. Ayes, 77, noes, 19. Ayes, 77, noes, 19. The conference report is agreed to. Continuing with this category, over on page 3, a conference report received for House Bill 84. House Bill 84, this conference report relates to electric utilities and licensed suppliers of electricity, regional transmission entities, annual report.

[00:13:42] The conference report is available to the members, to the public, and it is now before the body. Doug from Albemarle, Delia Laufer. Thank you, Mr. Speaker. HB 84, the conference report, talks about transparency in electric bills. It refines the definitions and reporting requirements and focuses on investor-owned and for-profit electric utilities.

[00:14:02] Mr. Speaker, I move that the House adopt the conference report. shall the conference report be agreed to close the roll ayes 89 noes 7 ayes 89 noes 7 the conference report is agreed to uh it's continuing on page three another different conference report uh uh this time uh this conference report uh relates to uh firearms and unintended motor vehicle civil penalty conference report for house bill 110 is available to the members to the public and um is

[00:14:39] now before you that from albemore delegate law firm all right thank you mr speaker hb 110 makes exemptions for law enforcement and some locations. It's the same as SB 496, and I move that we adopt the conference report. Shall the conference report be agreed to? Clerk will close the row.

[00:15:07] Ayes 60, no's 36. Ayes 60, no's 36. The conference report is agreed to. Conference report is received the same page for House Bill 140. House Bill 140, this conference report relates to the Commission on Federally Recognized Tribes, Purpose, Power, Sunset, Extended.

[00:15:24] The conference report is available to the members of the public. It is before you. Don't from Fairfax, Delegate Creasy. Thank you, Mr. Chairman. I mean, Mr. Speaker, House Bill 145, this conference report, what it does, it basically does what you heard. It extends the life of the commission for another year, and it changes the name.

[00:15:47] The name of this commission was the Commission on Updating Virginia Law to Reflect Federal recognition of Virginia tribes. Quite a mouthful. It will now be the Commission on Federally Recognized Tribes, and I move that we adopt the conference report. Shall the conference report be agreed to? Clerk will close the roll.

[00:16:11] Ayes 96, noes 1. Ayes 96, noes 1. The conference report is agreed to. Continuing on that same page, the conference report is received for House Bill 145, HB 145. This conference report relates to the Fantasy Contest Act Regulation and Taxation.

[00:16:32] The conference report is available to the members, to the public, and it is now before the body. Delegate from Fairfax, Delegate Kreese. Thank you, Mr. Speaker. House Bill, this conference report is the same as the one we passed yesterday, Senator Evans, 129. And I think it was, you look back at your vote, but I think it was pretty, I think there was like nine votes against it.

[00:16:52] I move the conference report. Shall the conference report be agreed to? Clerk will close the row. Ayes, 87, noes, 8.

[00:17:08] Ayes, 87, noes, 8. The conference report is agreed to. Over on page 4, we received a conference report for House Bill 153. This conference report relates to siting of data centers, site assessment, high-energy use facilities.

[00:17:24] Conference report is available to the members of the public and is before you. Then from Prince William, Delegate Thomas. Thank you, Mr. Speaker. The conference report moves the bill back into the exact same posture as HB 153 left the House and a vote of 90 to 7, I move adoption of the conference report. Conference report be agreed to.

[00:17:45] Clerk will close the roll. Ayes 93, noes 2. Ayes 93, noes 2. The conference report is agreed to. Conference report has been received for House Bill 173.

[00:18:03] This conference report relates to state correctional facilities, visitation policies, and a report. The conference report is available to the public, to the members here, and is now before you. Delegate from Norfolk, Delegate Anthony. Thank you, Mr. Speaker. This conference report maintains the core framework the House adopted earlier in this session.

[00:18:19] The bill establishes clear standards for in-person visitation in our state correctional facilities with minimum visitation time, protections against arbitrary suspension, due process through notice, and

an appeal process. The conference report also retains the stakeholder work group. This legislation was vetted by the Department of Corrections.

[00:18:38] It carries no fiscal impact. Mr. Speaker, I move the adoption of the conference report. Shall the conference report be agreed to? Clerk will close the roll. Ayes 65, noes 31.

[00:18:57] Ayes 65, noes 31. The conference report is agreed to. Conference report is received as well for House Bill 178. This conference report, different one, relates to public schools, a student support agency's memoranda of understanding. The conference report is available to the public, to the members, and is now before the body.

[00:19:15] Delegate from Norfolk, Delegate Anthony. Thank you, Mr. Speaker. The conference report on this reflects a thoughtful compromise between the House and the Senate. The measure directs the DOE to assess the impact of developing a program that will allow nonprofit student support agencies to partner with school divisions to provide services for at-risk students, including housing stabilization, case management, tutoring, mentoring, and enrichment programs.

[00:19:39] The department will provide cost estimates and implementation in the study. More importantly, this version, the Department of Education has confirmed that they can complete this within existing resources carries no fiscal impact.

[00:19:55] This language was fully vetted by the DOE and the Governor's Administration. Mr. Speaker, I move the adoption of the conference report. Shall the conference report be agreed to?

[00:20:16] Ayes 62, noes 35. Ayes 62, noes 35. The conference report is agreed to. Top of page 5, we come to House Bill 196. This conference report relates to the Virginia Residential Development Infrastructure Pilot program established, Sunset.

[00:20:33] The conference report is available to the public, to the members and is now before the body. Douglas Williams, Douglas Thomas. Thank you, Mr. Speaker. Mr. Speaker, I request that the conference report for House Bill 196 go by temporarily. Without objection, House Bill 196 goes by temporarily.

[00:20:54] Continuing with the category House Bill is in conference on the same page, the conference report has been received for House Bill 285. Conference reports relates to establishing the Distributed Energy Resources Task Force. Report sunset comes forward to the public, to the members, and is now before the body.

[00:21:13] The delegate from Fairfax, Delegate Helmer. Thank you, Mr. Speaker. The conference report on House Bill 285 takes the task force on distributed energy that we passed unanimously out of here. It represents a compromise position between the House and the Senate in terms of the task force composition.

[00:21:29] It's smaller than the Senate wanted, a little bit bigger than the House wanted. It maintains proportion to the original bill you probably still like. this bill. I move passage of the conference report. Shall the conference report be agreed to? Clerk will close the roll. Ayes 93, noes 3. Ayes 93, noes 3. The conference report is agreed to.

[00:21:56] Conference report is received on page 6 for House Bill 286. This conference report relates to the Virginia National Guard, power of the governor to summon in certain circumstances mobilization under federal authority. Annual report. Conference report is available to the public, to the members is

now before the House. Doug from Fairfax, Doug, the helmet. Thank you, Mr. Speaker. House Bill 286 conference report represents a fairly substantial change from what we pass out of this body, so I just wanted to put that forward. It may change how some folks think about this, and we've had lots of conversations with the National Guard, with the Secretary of Veterans and Military

[00:22:31] Affairs, and others to get here. As the bill stands, what it does is it ensures that the National Guard isn't used to interfere in elections in Virginia. It provides a mechanism for you, Mr. Speaker, the chair of public safety, the Senate chair of rules, and the chair of general laws to request an Office of Attorney General review of a military deployment for its legality, but doesn't require any reporting on deployment specifically from the commander of the National Guard. And then it does provide, which is something we've worked with the National Guard and they're excited about, an annual report on what the National Guard is doing so we get a good

[00:23:10] sense of that just in general, which I think is an opportunity for them to highlight their contributions to our security. The other provisions of the bill that refer to like what we do in terms of deployments and Title 10, Title 32, that has all been moved into a study or a task force review of what we should move forward since those are fairly complex. So with that, I move adoption of the conference report. Shall the conference report be agreed to?

[00:23:43] Clerk will close the roll. Ayes 62, noes 35. Ayes 62, noes 35. The conference report has agreed. The conference report has been received on that same page for House Bill 308.

[00:24:03] House Bill 308, this conference report relates to the Virginia Alcoholic Beverage Control Authority permitting of retail tobacco product retailers, purchase, possession, and sale of retail tobacco products penalties. The conference report is available to the public, to the members, and is now before the House. Thank you, Mr. Speaker.

[00:24:19] Mr. Speaker, members of the body, this is a bill that's been six or seven years in the making. It will finally enforce our underage 21 purchasing of tobacco and vape at retail and vape shops. Before I explain the bill, I mean, I've talked a little bit about this every single year, but we're finally in a part where we have a structure that's set in place.

[00:24:40] I want to thank the delegate from Fairfax, Delegate Kreczek, for his support both in general laws and appropriations as well to help with this bill. I also want to extend a thanks that has been with me every step of the way from former delegate, former senator Adam Eben, who's also been side by side with me on this effort to try to respond to a lot of concerns we've heard from parents that kids know exactly where to go to purchase vape and tobacco.

[00:25:12] And so we finally have an enforcement structure and mechanism that will end that practice. Specifically, the conference report incorporates feedback from ABC, the Office of Attorney General, public health advocates, and industry stakeholders. I'm pleased to say that we're at a place where everyone is supportive of the direction of where we're going.

[00:25:33] Specifically, establish a self-funding underage enforcement program under ABC. ABC has a lot of experience in this. When it comes to alcohol, it makes sense to extend it to tobacco and vape. ABC will administer the tobacco license for all retailers that sell tobacco or vape products.

[00:25:50] There are consequences for underage, and you will lose your license if you continuously do it. And so these vape shops and retail are on notice that if they continue to break Virginia's laws, that they will

lose their license. The license fees will be paid by retailers who fund enforcement under Virginia's 21 tobacco law through an MOU enforcement of OIG's vapor product directory.

[00:26:15] The language also strengthens enforcement provisions of liquid nicotine vapor product directory, ensuring that illegal products are not on the shelves. Mr. Speaker, this is, again, a product that's been six or seven years in the making, and I'm pleased to move adoption of the conference report.

[00:26:33] Shall the conference report be agreed to? Clerk will close the roll. Ayes 94, noes 2.

[00:26:48] Ayes 94, noes 2. The conference report is agreed to. Continuing House bills in conference, conference report on page 6 has been received for House Bill 361.

[00:27:05] This conference report relates to earned sentence credits, incarceration while awaiting trial or pending an appeal. The conference report is available to the public, to the members, and is now before the body. Senator from Fairfax, Douglas Sebald. Thank you, Mr. Speaker. Mr. Speaker, the conference report maintains the Senate's delayed effective date.

[00:27:21] I move the conference report. Shall the conference report be agreed to? Clerk will close the roll. Ayes 65, noes 31.

[00:27:38] Ayes 65, noes 31. The conference report is agreed to. Over on page 7 of the printing calendar, conference report is received for House Bill 433. House Bill 433, this conference report relates to a newborn screening, evaluation of disorders for inclusion.

[00:27:56] The conference report is available to the public, to the members, and is now before the body. Delgitte from Henrico, Delgitte LeVere-Bowling. Thank you, Mr. Speaker. The conference report keeps the agreed-upon requirement for VDH to establish a structured process for evaluating potential additions to the newborn screening program that are not on the federal RUSP, including clear criteria timelines, stakeholder consultation.

[00:28:19] It narrows eligibility to conditions with an available screening test and an FDA-approved treatment and requires VDH to complete evaluation of newly added RUSP conditions before reviewing any non-RUSP disorders, helping manage workload and fiscal impact. Mr. Speaker, we are very grateful for this conference report, and I move that the House adopt it.

[00:28:38] Shall the conference report be agreed to? Clerk will close the row. Ayes, 94, no, 0. Ayes, 94, no, 0. The conference report is agreed to.

[00:28:53] The conference report has been received for House Bill 443, patron by Delegate Hope. This conference report relates to maximum number of judges in each judicial district and circuit. The conference report is available to the public, to the members, and it is before the body.

[00:29:10] Delegate from Arlington, Delegate Hope. Mr. Speaker, this is exactly as the clerk described it. It also includes language to expand the Court of Appeals from 17 to 21. I move adoption of the conference report. shall the conference report be agreed to? Kirk will close the roll. Ayes 91, noes 5. Ayes 91, noes 5. The conference report is agreed to. Over on page 8, conference report has been received

[00:29:46] for House Bill 496. House Bill 496, this conference report relates to zoning, commercial industrial facilities, water use disclosures. The conference report is available to the public, to the members, and is now before the House. Delegate from President William, Delegate Guzman.

[00:30:02] Thank you, Mr. Speaker. House Bill 496 requires reports of the total volume of portable water as well as the volume of reclaimed water. The bill also defines reclaimed water on the code, and I will move the adoption of the conference report. Shall the conference report be agreed to?

[00:30:22] Clerk will close the roll. Ayes, 78, noes, 19. Ayes, 78, noes, 19. The conference report is agreed to. Conference report on that same page has been received for a delegate.

[00:30:38] House Bill 549. This conference report relates to conservation and replacement of trees during development process. Workgroup report is available to the public, to the members. It is now before you. Thank you Mr. Speaker, members of the body. This legislation will help Virginia localities utilize the very cost-effective tool available to track tackling urban heat islands, energy affordability, stormwater, air quality, and quality of life, and of course the protection of trees.

[00:31:05] The legislation will give localities the ability, and that's important, the ability, it's a permissive language to set tree canopy replacement and preservation standards if they choose. Again, this is completely optional to localities, whether to exercise it. It would also expand the ability to preserve trees statewide in authority that has been long overdue.

[00:31:25] And finally, this legislation would also convene all stakeholders to discuss other opportunities to support tree canopy so that we can make adjustments where possible. I move passage of the conference report. Shall the conference report be agreed to? Close the row.

[00:31:48] Ayes. 63, noes 34. Ayes 63, noes 34. The conference report is agreed to. Next conference report is, same page, is for House Bill 569. House Bill 569, this conference report relates to prevailing wage rate for public works contracts, definitions, civil penalty.

[00:32:05] The conference report is available to the public, to the members. It is now before you. Delegate from Virginia Beach, Delegate Fagans. Thank you, Mr. Speaker. One of the most important parts of this bill is it establishes a Virginia-based prevailing wage framework using surveys conducted every two years to ensure our wage standards reflect real conditions across the Commonwealth.

[00:32:23] The conference report preserves flexibility by allowing localities to opt in for locally funded projects, maintains a carve-out for broadband infrastructure, and exempts state-funded affordable housing programs. I move to adopt the conference report.

[00:32:39] Shall the conference report be agreed to? The clerk will close the roll. Ayes 62, noes 35. Ayes 62, noes 35. The committee report is agreed to. The committee report has been received for House Bill 590, House Bill 590.

[00:33:06] This committee report relates to small solar permitting platform established residential solar energy systems. The committee report is available to the public, to the members, and is now before you. The clerk from Norfolk, Donald Hernandez. Thank you, Mr. Speaker. This bill makes the process of getting a permit for rooftop solar projects cheaper, faster and less acrimonious.

[00:33:23] The substitute requires the Department of Energy to set up an online permitting platform for the simple projects by July 1st of 2027. This bill also adds a work group that came out of the conference report. So I would move the report and ask that we adopt it. Shall the conference report be agreed to?

[00:33:41] Clerk will close the roll. Ayes 64, nos 33. Ayes 64, nos 33. The conference report is agreed to. Over on page 9 of the printed calendar, we come to a conference report for House Bill 642, which this

conference report relates to cannabis control retail market penalties.

[00:34:07] The conference report is available to the public to review, for the members here, and is now before the body. Doug from FAFSA. Thank you, Mr. Speaker, members of the body. This conference report is related to the legislation established in a regulated adult-use cannabis retail market in Virginia.

[00:34:24] It creates a license structure, consumer protections, and a tax framework that allows the Commonwealth to move from an illicit market to a regulated and safer system. So what the conference report adopts, I'm going to go through first. I'm going to tell you about the differences between the House and the Senate bill and where the conference report came down.

[00:34:42] And then I'm going to go through the new changes, the new additions to the conference report. First, so the first big issue of contention, I guess, was the date. And we had the date established in the retail market. We had that as November 1st. The Senate had it this January 1st, 2027, and we capitulated, and so all the timelines in the bill will be adjusted with that date in mind.

[00:35:05] The second thing that we did was regarding the conversion fee for existing medical operators. And remember, the medical operators essentially have, like, nine licenses because they – and they're already out there established. So they have six retail locations, one which is co-located with their manufacturing and grow, and so they have a manufacturing and grow license as well, if you will, and then they have another, they also have a second grow, so that's their nine.

[00:35:33] So they're going to pay $10 million. We were at $5 million, and the Senate was at $15, so we came in between. That also is paid over three years, the first three years. The report adopts our framework for penalties, especially on the repeat violation of illegal distribution.

[00:35:51] So if you – right now it's a Class 2 misdemeanor for the first offense. For the second offense, it's a Class 1 misdemeanor. And then all subsequent offenses, it's a Class 6 felony for third and subsequent offenses. The report, also one of the big, big difference between the bills was around how to handle an ABC CCA merger of some sort.

[00:36:19] And what we did was, and I'll explain that, there's two things we agreed to, and I think it still gives the option at some point to have some kind of a merger, But what it does right away is that the report incorporates provisions allowing the Virginia ABC Authority to assist with enforcement related to illicit market activity, particularly through monitoring an illicit market tip line.

[00:36:44] So there would be a tip line that anybody could call. You see any kind of anybody selling illegal, you know, selling out there on the black market, you call the tip line, and that would go right to ABC. And they would coordinate that with the Cannabis Control Authority. Then we also have in the legislation a requirement for a submission to the General Assembly by next January 1 of a formal plan outlining coordination between ABC and the Cannabis Control Authority, the CCA, including around enforcement and organizational responsibilities moving forward.

[00:37:20] So that, I think, will put us in a good posture. The conference report also shifts the licensing. This is this is new, and I think this is important that everybody understands this That shifts licensing regulation and enforcement of intoxicating hemp products from VDACs to the Cannabis Control Authority So no longer will VDACs be regulating intoxicating help. They would still regulate of course Hemp industrial hemp use products like for rope and things like that So that ensures that all cabin annoyed products are regulated under one agency and subject to consistent testing safety standards

[00:37:57] enforcement. I think that makes eminent sense. And then we have, as part of that shift, the report addresses known loopholes that allow intoxicating hemp products to circumvent existing THC limits and helping ensure these products cannot undercut the regulated cannabis market. The report also adopts the house tax structure. I think one of the things that this, I know, hearing from both sides of the aisle to keep the taxes lower and so the house lower position is that is one out on that and that includes a 6% state cannabis tax and an

[00:38:34] optional local tax between one and three and a half percent so local government could make it one percent two percent one and a half whatever they want up to three and a half percent and they keep all that money there's no there's no requirement on how they spend that so there's and then there's also the existing sales tax. So the overall rate could hover around 12% to 16.5%. And it also requires an annual reporting to support assessing the tax structure. That was because the Senate wanted a higher tax. And so I said, well, why not do a report annually to see if the tax rate is too high or too low? So they agreed to that. The conference report keeps

[00:39:10] the Senate framework regarding the revenues, where the revenues go. And the big change was that we agreed to 40 percent of the revenues to early childhood care and education and 30 percent to the cannabis equity reinvestment fund, and that will ensure that communities that are most impacted by probation benefit from the legal market.

[00:39:31] The report also makes several adjustments to support small businesses and individuals disproportionately impacted by probation, including reducing the ownership requirement for impact license applicants from 66 to 51 percent, making it easier for them to attract financing, investment. It also expands the eligibility criteria for communities disproportionately policed for marijuana offenses by going back to 1999. And then the conference report removes provisions that would have limited micro— I'm almost done, okay? This is an important bill, and this has been a culmination of like five years of work, and I want to thank Delegate Herring

[00:40:08] especially, and the conferees, Delegate Moorfield too, and people that have been on the commission that has been studying this and working on this bill, and all of the stakeholders. But there's some other good stuff in here, like a public searchable directory of licensees.

[00:40:25] It really makes it more transparent. We've updated the testing, the labeling, the product registration standards to better ensure that the products meet clear safety and quality requirements. So it really is a month of collaboration that this report is a reflection of.

[00:40:42] And I want to especially thank Senator Ayer for her collaboration on this. Really, it was an immense effort. Everybody didn't get what they wanted, right? But everybody was able to be heard and listened to, and we put a lot of good stuff in there for everyone.

[00:40:58] And we came out with a bill that really protects public safety and creates a well-regulated marketplace and finally really moves beyond the chaos of the unregulated system we have today to a responsible, regulated cannabis market. Mr. Speaker, I move adoption of the conference report.

[00:41:15] The delegate from Buckingham. You want more? The delegate from Buckingham, Delegate Garrett. I'm here for you, Mr. Speaker. Would the patron yield for a question?

[00:41:31] Would the patron yield? Yes, I yield. So as the conference report comes out, and this is all changed after the process that it normally goes through, does the definition of hemp in the Virginia Code

change as it currently exists, And does that not make currently lawful products sold by Virginia manufacturers who employ Virginia employees illegal?

[00:41:54] Mr. Speaker, that's two questions, but I'll answer the second one first. Well, the answer is yes. The hemp now definition is the federal definition. And really, and that's because it's because the hemp that's out there is too strong.

[00:42:13] If you want to get, if you want, well, let me just say this. This is really a chance to transition hemp, right? And the important thing around what this does is it takes us back to where we were before with our definition of hemp.

[00:42:29] It's not Virginia that's killing hemp. It's the federal definition. And let's be honest, the ratio has been allowing hemp retailers to really sell higher levels of THC in their products. This is important to put it all one plant, one regulator, and that's what we're trying to do.

[00:42:48] Thank you, Mr. Speaker. Mr. Speaker. Delegate from Buckingham, Duggett Garrett. Mr. Speaker, at the appropriate time, I'd speak to the bill. Duggett has the floor. Mr. Speaker, I think it's ironic that the patron, for whom I have great respect, used the language that takes us back to where we were before. Because what it does is it takes us back to where we were before by creating a criminal offense for people who are selling marijuana products that doesn't currently exist, or at least one that will be enforceable by the ABC board who has policing powers that VADACs doesn't.

[00:43:15] A little-known fact, I actually carried the bill in Washington, D.C. to reschedule hemp and stop it from being federally illegal because we had a patchwork of enforcement across the 50 states where some people thought it was legal, but it's never been federally legal. And so we got justice that wasn't blind, and therefore, by definition, it wasn't justice.

[00:43:33] And what we see here today is a bill that I might be willing to support, except it strikes me, Mr. Speaker, that people are more concerned with tax revenue than they are with the impact marijuana and similar products like hemp with intoxicants uh and cannabinoids in them than they are with its impact on society and so we get a bill that's not about free markets free choice or freedom but a bill that's about tax revenue generation and a bill that's concerned with social justice really if you take down into the weeds of this so no pun intended uh and so ultimately uh this is an idea that i don't disagree with on its face but it has been so poorly crafted and constructed this session by this bill that would literally put Virginia

[00:44:12] employers out of business by redefining the definition that we've used for hemp, as long as we've had one, to something that creates an unfair market advantage for the multi-billion dollar international corporations who are trafficking marijuana. And so for that reason, I would hope that my colleagues across the aisle would pump the brakes a little bit and try to get this right and focus on freedom, not on tax revenue at the expense of our young people's well-being.

[00:44:36] Thank you, Mr. Speaker. Delegate from Rockingham, Delegate Wilk. Thank you, Mr. Speaker. Would the delegate from Fairfax yield for a question? Would the delegate yield? Yes, I yield.

[00:44:52] He yields. Thank you, Mr. Speaker. I would ask the delegate, so what's the practical punishment for that individual he cited that would be down on the corner dealing black market? Delegate from Fairfax, Delegate Creason. Let me just say that this is to answer the second question from earlier, and it kind of gets to what you were saying.

[00:45:13] Remember, none of this will happen. You will not be closed down right away. I mean, if this law passes today or July 1, it goes into effect or whatever, it doesn't mean that your store is going to be illegal. It still has to go through the process of the CCA promulgating regulations and things, and that's where you're going to find what that punishment will be.

[00:45:35] So this is not like, you know, you turn on the light and all of a sudden it's all everybody's in a legal posture. No. Mr. Speaker, would the delegate yield for another question? Will the delegate yield? Yes, I yield. The delegate will yield. Thank you, Mr. Speaker. I would ask, so after everybody's legal, everything's set up, what about that person that's down on the street corner dealing cannabis outside of the structure of what's being set up?

[00:46:03] Well, that person is breaking the law, and you heard the penalty will be a felony if they do that three times. Thank you, Mr. Speaker. Shall the compass report be agreed to? Close the roll.

[00:46:26] Ayes, 64. Noes, 32. I-64, Nose 32, the conference report is agreed to. Conference report is received on page 9 for House Bill 650. House Bill 650, this conference report relates to prohibiting certain action of furtherance of federal immigration enforcement in certain protected areas, exceptions, penalties.

[00:46:49] Conference report is available to the public, to the members, and is now before you. Then from Albemarle, Delegate Coulson. Thank you, Mr. Speaker. House Bill 650 is a bill to provide due process protections during immigration enforcement activities, primarily by requiring warrants to enter protected or private spaces. It passed this body 63 to 35.

[00:47:07] The conference report incorporates much of what passed our body with additional work with stakeholders to ensure it is robustly defensible under the 10th Amendment and serves to protect us and our state rights. Really briefly, it clarifies who has standing for a private cause of action.

[00:47:22] It removes the criminal components, ensuring there is a consistent civil remedy throughout. It removes the culpability of employees and their agents, instead focusing this bill on those actually conducting the enforcement activities, and it changes requirements of our universities, where we received some feedback and we were responsive to those concerns by removing mandatory notification and instead focusing on requiring warrants when entering non-public areas, classrooms, and dorms.

[00:47:47] So with that, I move we adopt the conference report. Shall the conference report be agreed to? Clerk will close the call.

[00:48:02] Ayes. 62. Noes, 35. Ayes, 62. Noes, 35. conference report has agreed to. Over on page 10 in this category, House Bills and Conference, we have come to House Bill 684. This conference report relates to photo speed monitoring devices, photo monitoring systems for traffic signals, proof of violation, registered conservatives of the peace, and technicians employed by a locality. Training conference reports available to the public, to the members who is before you now.

[00:48:29] From Chesapeake, Doug at Hayes. Thank you, Mr. Speaker. Mr. Speaker, the conference report specifies that technicians have to be employees of the locality, as well as they have to complete training for this purpose. I move the conference report.

[00:48:45] Shall the conference report be agreed to? Clerk will close the roll. Ayes 59, noes 38.

[00:49:01] Ayes 59, noes 38, the conference report is agreed to. House Bill 820, conference report for Delegate Helmers, House Bill 820, the conference report relates to the Virginia Housing Revolving Loan Fund established.

[00:49:16] Conference report is available to the public, to the members, and is now before the House. Doug from Fairfax, Dr. Helm. Thank you, Mr. Speaker. The conference report on House Bill 820 is a compromise position that establishes a mixed-income facility for housing, and in talks with the staff on both sides, make sure that we are funding it from the appropriate trust fund.

[00:49:44] I move acceptance of the conference report. Shall the conference report be agreed to? Clerk will close the roll. Ayes 90, nos 7.

[00:50:02] Ayes 90, nos 7, the conference report is agreed to. On page 11, we come to conference report for House Bill 930. This conference report relates to the protection of employees, retaliatory action prohibited. Conference report is available to the public, to the members, and it is now before the body. Delicate from Fairfax, Delicate Simon.

[00:50:19] Thank you, Mr. Speaker, members of the House. Yes, House Bill 930 is a bill, as you may recall, to enhance worker protection for whistleblowers and people that report things being done by their employer. The conference report is a substitute that blends the House and Senate approach to these.

[00:50:38] This bill is actually a subset of a larger employment law bill that you'll see in a few minutes, but the idea was to keep this bill mostly in tune with what was happening with the larger bill. I hope it's the pleasure of the body to adopt the conference report. shall the conference report be agreed to close the roll ayes 62 knows 35 ayes 62 knows 35 the conference report agreed to same page same patron different bill conference reports received for

[00:51:12] house bill 932 this conference report relates to the general assembly and members thereof the legislative branch of government and legislative commissions councils committees and other legislative entities conference reports available to the public to the members it is now before you Thank you, Mr. Speaker, members of the House.

[00:51:30] This bill is the recodification of Title 30. It was a product of a two-year co-commissioned effort to look at all of Title 30. Even with all those years of effort, the Senate has continued to have some concerns about some of the sections, particularly with regards to the clerk's office over there.

[00:51:47] So what this bill does, the conference report does, is it delays the enactment, rather it's got a reenactment on the vast majority of the bill. The repeal of 30-13 remains, is not subject to the reenactment, and it requires the clerk's offices to attend a co-commissioned meeting so they can tell us all the things they don't like about the bill so that when we come back next year, we'll have it all fixed.

[00:52:12] So, Mr. Speaker, that's the conference report. I hope it's the pleasure of everybody to adopt the conference report. Delegate from Chesapeake, Delegate Lefwich. Thank you, Mr. Speaker. Will the delegate yield for a question? Will the delegate yield for a question? Mr. Speaker, I yield. Thank you, Mr. Speaker. I thank the delegate. So, I would ask the delegate whether or not this changes the provision that amendments need to be posted in the clerk's offices within 90 days of being issued.

[00:52:36] Delegate from Fairfax, Delegate Simon. Mr. Speaker, I would say to the delegate that this bill repeals an obsolete provision, which is Title 30-13, which was a holdover from the pre-1971 Constitution

that didn't belong in the code at all. And, yes, it continues to delete that section, and that happens effectively immediately, not the delayed act.

[00:52:53] I thank the delegate, speaking to the measure. The delegate has the floor. I would encourage my colleagues on this side of the aisle at least to vote no. Red flags. Thank you, Mr. Speaker. Shall the conference report be agreed to? Clerk will close the row.

[00:53:21] Ayes, 61, noes, 36. Ayes, 61, noes, 36. The conference report is agreed to. Over on page 13, conference report is received for House Bill 969, patron by delegate Price.

[00:53:41] House Bill 969, this conference report directs the Department of Criminal Justice Services to convene a workgroup to develop policy and legislative recommendation to address firearm violence. Conference report is available to the public, to the members, it is before you now. Delegate from Newport News, Delegate Price. Thank you, Mr. Speaker. The conference report for House Bill 969 takes into account that previous iterations of this bill that I've carried were without the gift of an administration that actually believed in gun violence prevention.

[00:54:13] Now that we have that, we would like for that administration to be able to weigh in to setting up the Virginia Center for Gun Violence Prevention. So this is a work group with a very detailed membership that will have a robust discussion.

[00:54:30] And then we will come back with legislative proposals on how to establish the Virginia Gun Violence Prevention Center. With that, Mr. Speaker, I lovingly ask that we adopt the conference committee report. Tell the conference report to be agreed.

[00:54:47] I'm sorry, the delegate from Farkeh, Delegate Weber. Thank you, Mr. Speaker, speaking to the bill. The delegate has the floor. Mr. Speaker, I would hope that everyone here would like to see less violence in our communities.

[00:55:09] I would hope that Governor Youngkin and the previous administration wanted to see less violence in our communities.

[00:55:27] And I believe it was during his State of the Commonwealth when he stated that we had a 30% reduction in our murder rate. Mr. Speaker, how we get to less violence in our communities, whether it be with Operation Ceasefire or some other means, And I just would like to say that everyone here would like to see more of our constituents live a little longer.

[00:55:59] And a 30% reduction in the murder rate is something that should be applauded. So, Mr. Speaker, I saw that some of the previous administration's works actually did work because we had a reduction.

[00:56:21] I would have liked to have seen that continue. So, Mr. Speaker, I would prefer to see the Operation Ceasefire, but I just would like to say that characterizing previous administrations and all our colleagues that, you know, things don't work, don't work.

[00:56:43] But, Mr. Speaker, every single one of us wants to see less violence in our communities. Thank you. Delegate from Patrick County, Delegate Williams. Yes, Mr. Speaker, speaking to the bill. Delegate has the floor.

[00:56:59] Yes, Mr. Speaker. What I just heard is that this is going to start a center. There's, like, a lot of important people on it, and we're going to brainstorm, and then we're going to bring some legislation next

year. And the issue that I have with that is that seems to be, like, the whole motto of the Democrats this year is we're going to figure, like, we got a plan, and our plan is to, like, study it.

[00:57:24] And that's the issue because what I heard last fall was that you had an affordability agenda. You had a public safety agenda. You had all these answers for everyone. And it turns out the answer was just, we're going to spend some more money, and we're going to study it.

[00:57:40] So what I have here is Operation Ceasefire. When I saw Virginia Gun Violence Prevention Center, I thought, hmm, they're just renaming the actual program that we're using that works well. We've got proven factual data. If you guys love data, you pass a bunch of studies, study this one.

[00:57:57] Operation Ceasefire works. We didn't have to study it all. We went into dangerous violent communities, we had conversations, and we started cutting down on gun and gang violence. Because we all know that that's who's shooting each other. Black-on-black crime, under the age of 25, in impoverished communities.

[00:58:17] Ceasefire went in, tried to help those people. Ceasefire went in and got the leaders of those people together to have good conversations about stopping shooting each other. And that's a good policy, not another center in Richmond to think about things.

[00:58:34] I don't want gun violence. But it's not happening in my communities, guys. It's happening elsewhere, you know. Thank you all. Mr. Speaker. The delegate from Newport News, Delegate Price.

[00:58:50] Thank you, Mr. Speaker. And I read your body language, so I will try to behave. First of all, these people, those people, are the communities that a lot of us represent.

[00:59:08] And we stand here on the floor every single day fighting for bills that will help these people. And this is one of them. Because as the delegate stated, he does not have this issue in his community.

[00:59:24] So for him to think that he can best tell other communities how to deal with an issue that his area does not even have to deal with, is asinine. Mr. Speaker, the reason why murder rates went down is because of the good people that are running programs on the ground. The community violence interrupters, the hospitals, and yes, law enforcement was there after shootings to maybe catch the bad guy, But prevention lies in the hands of communities.

[01:00:03] And so I appreciate the delegate's desire to go back to a point where millions of dollars were pillaged from gun violence prevention for a previous attorney general to put up commercials and billboards with his image.

[01:00:20] But what this center will do is finally do the research that Trump's CDC was not allowed to do, that Youngkin's misnamed Operation Ceasefire was not allowed to do, and look at this holistically.

[01:00:35] so that Hampton Roads, Northern Virginia, or wherever gun violence happens to include domestic violence that happens all over this Commonwealth, suicide by firearm, which happens all over this Commonwealth, and just so he wants to, the delegate wants to portray Black people as the only people that know how to do gun violence incorrectly, Mr. Speaker, I would just ask that we support this so that we can have a comprehensive view on all of the firearm

[01:01:13] violence that is happening within our communities with the experts that have been put in place to do that so that our policies will not be through the veil of the racism that was dropped on this floor and can help all of our commonwealth and all of the communities we serve. So I ask that we would again

adopt the conference committee report. Doug from Spotsylvania, Thank you, Mr. Speaker, speaking to the conference report.

[01:01:48] Delegate has the floor. Thank you, Mr. Speaker. It's a lively debate here, but one thing that's being missed, government doesn't have the answers. Community kind of has the answers. Ultimately, it's a spiritual issue. It's a respect of life. There have been several bills that have gone through this chamber this year that do not respect life at its very formation, Mr. Speaker.

[01:02:09] And when we do not respect life at its very formation, that is where society is, decay of society is at. This is a very religious matter. Respect for life, all men and women created in God's image.

[01:02:26] That is where the argument needs to be. That's where the focus needs to be. Respecting each and every person for who God made them be right from conception, Mr. Speaker. And when society fails to remember that and respect that, that's where society begins to crumble.

[01:02:45] Thank you, Mr. Speaker. Shall the conference report be agreed to? Clerk will close the row.

[01:03:04] Ayes 61, noes 35. Ayes 61, noes 35. The conference report is agreed to. Over on page 14, conference report is received for Delegate Tran's House Bill 1007.

[01:03:26] This conference report relates to the Virginia Birth-Related Neurological Injury Compensation Program and Fund, Board of Directors, Plan of Operation, Filing of Claims, Awards and Coverage for Expenses or Services. Conference report is available to the public, to the members, and before you know. Delegate Tran.

[01:03:42] Thank you, Mr. Speaker. House Bill 1007 modernizes the fund known as the Birth Injury Fund. The conference report largely reflects our introduced bill with adjustments to the representation on the board and the requirement of an ombudsman. I've moved passage of the conference report.

[01:03:58] Shall the conference report be agreed to? Clerk will close the roll. Ayes 91, nos 2.

[01:04:14] Ayes 91, nos 2. The conference report is agreed to. And I apologize, Mr. Speaker, members of the House. I went ahead of Paige before I should have. So go back to page 13. We just dispensed with conference report for House Bill 1007. Conference report now is received for House Bill 1005.

[01:04:34] House Bill 1005 relates to the Virginia Residential Landlord and Tenant Act, rental payment methods, prohibited fees. The conference report is available to the public, to the members, and is before you. Delegate from Fairfax, Delegate Tran. Thank you, Mr. Speaker. House Bill 1005 conference report keeps aspects of this bill as it passed our chamber as well as Senate Bill 313 as it was introduced.

[01:04:57] It requires the landlords to accept rent and security deposit payments and check or money order and keeps the requirement for a free method to pay rent if there's a fee, and then if there is a fee charge, then it's only at cost. And it also says that tenants cannot be charged for routine maintenance.

[01:05:14] I move passage of the conference report. Shall the conference report be agreed to? Clerk will close the roll. Ayes 62, noes 35.

[01:05:30] I-62, Nose 35, the conference report is agreed to. Over on page 14 of the printed calendar, we come to House Bill 1011, another conference report patroned by Delegate Tran. This conference report relates to compost and other products containing organic soil amendments, infrastructure, Department of Environmental Quality, tax policy options for reforming the litter tax study expanded.

[01:05:56] Civil penalty, conference report is available to the public, to the body, and is now before you. For the trifecta, the delegate from Fairfax, Delegate Tran. Thank you so much, Mr. Speaker. House Bill 10-11, the conference report reflects the bill as it passed the House of Delegates by a vote of 69-28.

[01:06:12] It allows local governments to establish ordinances to reduce organic waste through composting and other similar strategies. I move adoption of the conference report. Shall the conference report be agreed to? Clerk will close the row.

[01:06:35] Ayes 66, noes 31. I-66, Nose 31, the conference report is agreed to. Next conference report is House Bill 1022. This conference report relates to consumer protection, automatic renewal, or continuous service offers.

[01:06:53] Relating to consumer protection, automatic renewal, or continuous service offers, disclosure and cancellation. The conference report is available to the public, to the members, and before you, I apologize. Delegate from Loudoun County, Delegate Risa. Thank you, Mr. Speaker.

[01:07:08] Trying. I've lost my voice a little bit, but the conference report does two things. Thank you, Mr. Speaker. May I speak for the patron?

[01:07:29] The conference report does a couple of things. One, updates the legislation to add the VA Consumer Protection Act provisions defining what good faith means. Other state statutes use the VCPA enforcement mechanism, but this is the only one that has broader good faith language added.

[01:07:46] Number two, it matches the Senate version, which makes the Senate version match the House version so that in-person cancellations are not required. I'd ask that the conference committee report be adopted. Shall the conference report be agreed to? The clerk will close the roll.

[01:08:09] Ayes 96, no zero. Ayes 96, no zero. Nice assist. The conference report is agreed to. House Bill 1046 is now before you. it relates to the virginia public procurement act additional public works contract requirements legislation uh the account report is available to the public uh to the members and is now before the house from richmond city delegate carr uh thank you mr speaker uh house bill 1046 creates additional transparency for the use of independent contractors the conference report includes the

[01:08:43] following a provision to ensure that construction contractors on public works contracts have not repeated violation of important labor laws within a three-year period. It requires contractors on local government contracts to notify the local government about the use of more than one independent contractor. It requires all other public bodies to authorize the use of more than one independent contractor by their construction contractors. It includes so that these provisions apply only on public work contracts larger than $5 million. It delays the bill by a

[01:09:19] year so the Department of Labor and Industry can issue guidance on authorization of independent contractors. And finally, it directs the Public Body Procurement Work Group to conduct an 18-month study on the feasibility of requiring apprenticeships on public work contracts.

[01:09:36] I move the conference report and ask that we accept it. Shall the conference report be agreed to? Clerk will close the row.

[01:09:53] Ayes 62, noes 35. Ayes 62, noes 35. The conference report is agreed to. Over on page 15, House bills in conference, conference report is received for House Bill 1092, which relates to protection of employees, standards for heat illness prevention.

[01:10:09] Conference report is billed to the public, to the members, and is now before you. The delegate from Norfolk, Delegate Hernandez. Thank you, Mr. Speaker. This is the bill that would create the first ever heat stress protections for workers. It's the same bill that we voted on yesterday, the Senate bill, so I would move adoption of the conference committee report.

[01:10:25] Shall the conference report be agreed to? Clerk will close the roll. Ayes. I-61, noes 35.

[01:10:41] I-61, noes 35. The conference report is agreed to. House Bill 1208 is now before you. It relates to a public education, early childhood care and education childcare access calculations report. Conference report available to the public and to the members and is now before the House.

[01:10:59] From Prince William, Delegate Sewell. Thank you, Mr. Speaker. House Bill 1208 establishes a childcare access calculation, calculation, a standardized, transparent method for estimating the annual funding needed for the Commonwealth's early childhood care and education system. The conference report requires a report be provided to the Commission on Early Childhood Care and Education by October of each year and adds permissive language to allow up to $5 million in unexpended general funds from the previous year to be allocated to addressing waitlist slots that remain.

[01:11:31] I move the conference report and ask my college to join me in voting yes. Shall the conference report be agreed to? Clerk will close the roll.

[01:11:49] Ayes 76, noes 20. Ayes 76, noes 20. The conference report is agreed to. House Bill 1263, this conference report relates to a collective bargaining by public employees, individual home care providers, Virginia Home Care Authority established, Public Employee Relations Board established, exclusive bargaining representatives.

[01:12:07] Conference report is available to the public, to the members, and is now before you. Doug from Fairfax, Doug Atran. Thank you. Mr. Speaker, can this conference report go by temporarily? Without objection, HB 1263 is bide temporarily. Accordingly, over on page 16, then, we come for a conference report for House Bill 1279.

[01:12:33] This conference report relates to affordable housing, religious organizations, and other non-profit tax-exempt properties. Conference report available to the public, to the members here, and is now before you. From Fredericksburg, delegate call. Thank you, Mr. Speaker. HB 1279, the faith and housing legislation conference report, reflects the work of many.

[01:12:51] stakeholders who came together to work out a compromise while keeping the bill's core and mission intact. I want to thank the hard work that has been done on this bill and in order to address some of the remaining concerns, the report makes three changes. First, it adds a delayed enactment of January 1st, 2027, giving localities some time to prepare. Second, it establishes a four-year sunset so the General Assembly can evaluate how the policy works. And third, it excludes projects already moving through the rezoning process, ensuring current efforts are not disrupted. These changes show that we listen and work towards compromise. Mr. Speaker, I move the conference report and hope my colleagues will vote yes in God's backyard. Shall the conference

[01:13:30] report be agreed to? I skipped voting against God. Clerk will close the row. Ayes 54, noes 41. Ayes 54, noes 41. The conference report is agreed to. Ms. Speaker, I inadvertently skipped over one numerically. So Delegate Hayes' House Bill 1272, this conference report for House Bill 1272 on top of page 16 relates to regulation of electronic gaming devices penalties. Conference report is

[01:14:09] available to the public, to the members, it is now before you. The Delegate from Chesapeake, Delegate Hayes. Thank you so much, Mr. Speaker, members of the House. This is the Skills Game Conference Report, and I just want to touch on some of the details that we have in this.

[01:14:25] The purpose for this conference report is to clean up the market, Mr. Speaker. 90,000 illegal machines are in the Commonwealth today, 90,000. Mr. Speaker, with the conference report, we're going to limit the number of skill machines that are legal, regulated, and taxed here in the Commonwealth by allowing 25,000 machines in the Commonwealth with a 25% gross tax.

[01:14:59] Mr. Speaker, members of the House, this will generate somewhat in the neighborhood of $370 million for the Commonwealth's budget. Also, Mr. Speaker, 75% of the resources that we get from this will come to this Commonwealth General Fund.

[01:15:19] Fifteen percent will go to localities so that they can be used for local enforcement. Mr. Speaker, members of the House, Commonwealth's attorneys have been calling me, emailing, texting, doing everything to try to see that we can assist these localities with these machines in the localities illegally.

[01:15:41] Mr. Speaker, six and a half percent will go to lottery for enforcement. 2.5% will go towards problem gambling, and, Mr. Speaker, that represents some $7.4 million for problem gambling.

[01:15:58] And then, of course, Mr. Speaker, the final portion of that breakdown is 1% will go to state police for enforcement. The machines and locations, Mr. Speaker, locations for convenience stores, that will be allowed for three machines, and for restaurants, four machines, for truck stops, seven machines, and for charitable locations, two machines. Mr. Speaker, it provides for a local referendum for an opt-out for localities who wish not to participate, and for those locations that

[01:16:35] have illegal machines at those locations, the penalty for having such is $50,000 per machine. Mr. Speaker, also, the majority of the machines that are provided cannot be in low-income areas.

[01:16:53] And then, of course, Mr. Speaker, there's strong reporting requirements to provide updates to the Commonwealth on how many illegal machines are still out and other important informations as well. For the local machines to identify what actually is a legal machine, Mr. Speaker, there will be notification placed on each legal lead licensed machine as well. There's non-insertion here with the machines. The

[01:17:30] max payouts for each machine is $4,000. The max wager is $5, Mr. Speaker. Mr. Speaker, I want to say how much we appreciate Delegate Kreczak for his work on this as well as we have negotiated and improved a piece of legislation than what we had two years ago that passed this body.

[01:17:59] we've improved it and have a much better situation with this legislation. Mr. Speaker, I move the conference report. The delegate from Scott County, Delegate Kilgore. Thank you, Mr. Speaker, and I want to thank the gentleman for his hard work on this conference report.

[01:18:21] And, Mr. Speaker, ladies and gentlemen of the House, what I'll say to you is we've had this discussion of skill games for a number of years. This bill will actually reduce the number of skill games across the Commonwealth from about 90,000 to 25,000.

[01:18:37] So if you're getting those complaints from people that there are too many of them or that there's these little mini casinos set up in your community like they are in my community, your Commonwealth Attorney's Office and your Sheriff's Office will be very, very supportive of this to where they can go in and shut these individuals down.

[01:18:57] But $350 million that we, at minimum, that we get from this in our budget. Right now, ladies and gentlemen, we're getting zero. These games are going all across the Commonwealth, and we get zero for the taxpayers of Virginia.

[01:19:17] And I think it's been a good compromise. I want to thank the chairman of General Laws for helping shepherd this through. And ladies and gentlemen, this is a good compromise. It's a good way to get our arms around the skill games industry here.

[01:19:34] And it's going to be your Commonwealth attorneys and your sheriffs and your police departments are going to thank you for this because right now their hands are tied the way the law is written. So I would encourage a yes vote to regulate this industry. Thank you, Mr. Speaker. The delegate from Buckingham County, Delegate Garrett.

[01:19:54] Thank you, Mr. Speaker. Speaking of the bill. The delegate has the floor. Mr. Speaker, there are very few people on either side of this chamber who I like or respect more than the patron of this bill. And this bill is one that if I dug far enough, I've probably been on both sides of. But I want to point out a problem, as I see it, which has nothing to do with the patron or the bill.

[01:20:10] It has to do with how we do our jobs. And this is an indictment of people on both sides of the aisle. So we know there are 90,000 of these machines in the Commonwealth of Virginia, and then we're going to reduce that number to 25,000. That's great. But the reason there are 90,000 of these machines in Virginia is because we were about as clear as mud.

[01:20:26] We spoke to the small men and women, many of whom immigrants to our nation, in the business community who paid lots and lots of money to put their machines in their businesses. So we're going to turn them into criminals, and we're going to take that capital investment that they made on the good faith belief that we were letting them do something, bad or good, and we're going to turn that sideways and ram it right where the sun doesn't shine.

[01:20:47] And that's the problem, right, that we've told people, yes, you can do this. Wait, no, you can't. No, yes, you can. Wait, but not within this distance of a church or this distance of a school. And again, I circle back to the notion that tragically we see more concern with generating revenue than we do with getting things right as it relates to the best interests of the people who we report to serve, and that we lose jobs and diminish opportunity across all communities when we can't figure out from the word go what is right and isn't right before investors pour money and their hard-earned resources into things that they believe, based on good faith, are legal.

[01:21:22] So I'm a no vote. I actually thank the patron for carrying the bill because it needs to be done. Something needs to be done. But we really should look long and hard at the messages we send to our job creators before we send them because the messages we send, when wrong, will cost jobs. Thank you, Mr. Speaker.

[01:21:39] Delegate from Chesapeake, Delegate Lefwich. Thank you, Mr. Speaker, for speaking to the measure. Delegate has the floor. Thank you, Mr. Speaker. From my understanding, the original bill would not have allowed these gains to be placed in more than 20% of low-income areas.

[01:21:56] As I understand, the conference report would allow as many as 60% of the games to be placed in those communities. Secondly, I believe the original bill would not have allowed a skill game to be within 1,000 feet of a school. I think the conference report loosens that restriction a little bit. The original bill

required 84% of the payouts to go to players, and I believe that payout has been reduced by the conference report.

[01:22:19] And then lastly, Mr. Speaker, as I understand at the conference report, the original bill would have required someone to scan an ID to play the game, which would have picked up whether someone had voluntarily put themselves on the exclusion list, and that the conference report does not do that anymore, and that now a clerk would have to check an ID and then tell that person, you can't play.

[01:22:43] So I will share some of the sentiments of my colleague from Buckingham, that why are we compromising with the welfare of our citizens with these types of things? Thank you, Mr. Speaker. The delegate from Lunenburg, Delegate Wright. Thank you, Mr. Speaker. I rise to speak to the bill. The delegate has the floor. Mr. Speaker, we're kind of nibbling around the edges on this bill. I don't think we've really gotten to the problem. The problem is what its effect is going to have on our communities, on our young people, on poor people who really think they've got a

[01:23:20] chance of winning. I see a lot of advertisement for people that are having a problem with chronic gambling, addicted to gambling. It's a serious problem. We're told to start with that lottery and horse racing are going to solve all the problems, pay for education and everything.

[01:23:39] Then we were told there's casinos, first one thing and then the other. You never will pay for what this state needs by which you'll get from gambling. You're going to cause more problems among families and communities and young people going without food to eat and people not be able to support their families and so forth than you'll ever gain.

[01:24:05] And that's what it gets down to. It's not right. The state has no business being involved in legalizing marijuana or gambling. So I urge the body to vote no. Thank you, sir. Delegate from Roanoke, Delegate McNamara.

[01:24:25] Thank you, Mr. Speaker. May I ask a question of the patron? Would the patron yell for a question? I yell, Mr. Speaker. He yells. Thank you, Mr. Speaker. I might ask the patron if I could. Does this, if there's some pretty significant towns in Virginia, does this allow towns to have the opt-out option as well?

[01:24:46] Delegate from Chesapeake, Delegate Hayes. Thank you, Mr. Speaker. To the patron, I would say that any locality has that ability. Follow-on question, if I may, Mr. Speaker. With a delegate, you. A year, Mr. Speaker.

[01:25:02] Delegate, you. If I might ask, the question would be, could you define locality? Does locality mean a county or a city? Mr. Speaker, locality would mean cities, counties, towns.

[01:25:22] Speaking to the bill. Doug, you have the floor. Thank you, Mr. Speaker. I'm a little bit concerned about that answer, but I do want to bring to this body's attention. We have 90,000 machines out there, and so the thought that we're going to reduce the number of machines to 25,000, as he looked on, is very positive.

[01:25:42] My suggestion is why are there 90,000 machines out there that are illegal in the first place? And, you know, so if something's just, it's real bad, which if $90,000 must be really bad, then why am I interested in doing something that's not quite so bad at $25,000?

[01:25:59] I think we have a little bit of a problem, and our problem is we have a completely, we cannot stop our desire to generate revenue for the Commonwealth, which is a result of us unable to stop spending money in the Commonwealth.

[01:26:21] And so we look at marijuana because marijuana will give us X number of dollars. We look at skill games. They'll give us X number of dollars. We'll look at gambling houses because they'll give us X number of dollars. At some point, we need to look at stop spending so much money so that we don't need to do all these vices and tax vices that are preying on the people that we say we're here to protect.

[01:26:47] Thank you, Mr. Speaker. Shall the conference report be agreed to?

[01:27:07] Close the row. Ayes, 42, noes, 52, abstentions, 1. Ayes, 42, noes, 52, abstentions, 1. The conference report is not adopted. Continuing on page 16, we come to a conference report for House Bill 1301.

[01:27:33] 1301, this conference report relates to school boards, student diabetes care, and management in schools. A division-wide plan required. Conference report is available to the public, to the members. It is now before the body. The delegate from President William, delegate Thomas. Thank you, Mr. Speaker. Mr. Speaker, House Bill 1301, by way of reminders, our bill to update how our localities, or our school divisions rather, permit the administration of diabetes treatment.

[01:27:57] I want to thank Delegates Cherry and Rasool, among many other stakeholders, for helping us out with this. It's been a very long road. The conference report before you is substantially similar to what left the House, with the exception of a few changes. One, the standards of care, which we have changed now to the ADA standards of care, local restrictions, provision was changed, implementation, which also gives the student's provider a seat at the table now, and we've removed the enactment clause.

[01:28:23] With that, Mr. Speaker, I move adoption of the conference report. Shall the conference report be agreed to? Clerk will close the row.

[01:28:40] Ayes 96, no zero. Ayes 96, no zero. Conference report is agreed to.

[01:28:53] Over on page 17, page 17, conference report is received for House Bill 1377, Delegate Helmer's legislation. This conference report establishes a task force to examine a higher education at Virginia Military Institute report.

[01:29:13] The conference report is available to the public, to the members that is now before the body. Delegate from Fairfax, Delegate Helmer. Thank you, Mr. Speaker. Here the conference report on House Bill 1377 looks like the bill that passed -- that we passed -- oh, sorry.

[01:29:30] It is the Senate's changes to the bill that we were fine with, which has changed some of the language in the whereas clauses here. It keeps the task force and the purpose of the task force to look into racism and sexism And moving past the Confederacy at VMI, it is supported by VMI.

[01:29:50] And the only difference from the main pieces in the conference report is we have the Senate has acceded to our position that it needs to be a 4-2 task force. So four members of the House, two members of the Senate. With that, I move we adopt the conference report. Delegate, shall the conference report be agreed to?

[01:30:17] Clerk will close the row. Ayes 66, noes 29. Ayes 66, noes 29. The conference report is agreed to. Conference report has been received for House Bill 1385. House Bill 1385, this conference report relates to

gubernatorial appointments, confirmation processes, Virginia Commission on Higher Education Board appointments, membership duties, and committees of and legal counsel for governing boards, public institutes of higher education.

[01:30:43] Conference report is available to the public, to the members, and now before the body. Delegate from Montgomery County, Delegate Franklin. Mr. Speaker, can we pass by this conference report temporarily? Without objection, HB 1385 is bi-temporarily. Accordingly, turning to page 18, page 18, a conference report has been received for Delegate Lopez's House Bill 1441.

[01:31:14] This conference report relates to law enforcement agencies' agreements with federal authority for immigration enforcement requirements. Conference report is available to the public, to the members. Delegate Lopez. Thank you, Mr. Speaker. The substitute brings together and blends aspects of HB 1441 and SB 783 into a bill that will best protect Virginians and make sure local and state law enforcement can focus on public safety, not supporting irresponsible and arguably reckless ICE actions.

[01:31:41] The conference substitute covers all agreements with federal agency for civil immigration enforcement or detention, ensures that in jurisdictions without formal ICE agreements, Virginia law enforcement may not enforce federal civil immigration law without judicial warrants.

[01:31:57] It also adds clarifications from the Senate bill requiring adherence to Virginia law and the use of judicial warrants. It also, I appreciate the fact that this has been negotiated for several months was based on best practices from several other states that passed judicial muster.

[01:32:12] I move we report the bill, the conference report. Shall the conference report be agreed to? Clerk will close the row.

[01:32:31] Excuse me. Ayes, 62, noes, 34. Ayes, 62, noes, 34. The conference report is agreed to. Same page, conference report has been received for House Bill 1482, which relates to law enforcement officers' restrictions on wearing facial coverings, required identification, civil liability, penalty. The conference report is available to the public, to the members. It is now before you. Delegate from Richmond City, Delegate Smith.

[01:33:03] Thank you, Mr. Speaker. Excuse me. HB 1482 is cognate now to Senate Bill 352, which we will pass in a little while. As a reminder, these regulate when law enforcement can and cannot cover their face. The conference report builds in exceptions such as undercover and emergency operations.

[01:33:21] The report also outlines when law enforcement must wear proper identification, which was a key part of the House bill. The report also asks DCJS to promulgate a model policy and if local agencies adopt such policy, officers can avoid individual liability. That was brought over from the Senate version. This report addresses concerns of stakeholders and representatives and it represents a strong policy that law enforcement should engage in best practices of community policing.

[01:33:49] I would also like to thank all my colleagues here in both the House and the Senate that worked on And these packages of bills put a lot of work into this and I appreciate their help. I move the conference report and ask my colleagues to vote yes.

[01:34:04] Shall the conference report be agreed to? Clerk will close the roll. Ayes 62, noes 35. Ayes 62, noes 35, the conference report is agreed to.

[01:34:22] Conference report has been received for House Bill 1487, House Bill 1487. This conference report relates to a pilot program for underground transmission lines, qualifying projects, levy report. report is available to the public, to the members. It's now before you. Delegate from Loudoun County, Delegate Singh. Mr. Speaker, this conference report relates to a pilot program to bury 500 kilovolt transmission lines. The conference report protects residential rate payers and would require high energy use facilities to pay their fair share. I move adoption of this conference

[01:34:56] report. Shall the conference report be agreed to? Clerk will close the roll. Ayes 61, noes 36. Ayes 61, noes 36. The conference report is agreed to. College report is received for House Bill 1492.

[01:35:21] This comes for, relates to impersonating federal law enforcement officer penalties. Conference report is available to the public, to the members, and is now before you. Delegate from Fairfax, Delegate, oh, Delegate from Fairfax, Delegate Shen. Thank you, Mr. Speaker. Mr. Speaker, the conference report for House Bill 1492 adds an amendment that clarifies that there has to be an intent for the purpose of deceiving another person while impersonating a law enforcement officer and increases the criminal penalty for someone who is impersonating a law enforcement officer while wearing a facial covering. Mr. Speaker, I move that we adopt the

[01:35:55] conference report. Shall the conference report be agreed to? Close the roll. Ayes 63, nos 32.

[01:36:16] Ayes 63, nos 32, the conference report is agreed to. Mr. Speaker? Delegate from Fairfax, Delegate Simon. Mr. Speaker, having voted on the prevailing side by which we adopted the conference report to House Bill 110, I move that we reconsider that vote so that we can request a second committee of conference. Delegate from Fairfax, Delegate Simon moves, having voted on the prevailing side by which we accepted the conference report for House Bill 110, I ask that we reconsider that vote so that that bill can go back into conference for a second committee of conference. All those in favor say aye. Aye. All those opposed no. The motion is agreed to House Bill 110 is... Mr. Speaker. Yes.

[01:36:50] Yeah, I move the House request the second committee of conference for House Bill 110. Delegate from Fairfax, Delegate Simon moves that the House request a second committee of conference for House Bill 110. All those in favor say aye. Aye. All those opposed no. Second committee of conference is agreed to. The motion is agreed to. House Bill 110 is in a second committee of conference.

[01:37:11] Right. Continuing then, we have top of page 19. Conference report is received for House Bill 1525. This conference report relates to possession or transportation of certain firearms by certain persons. Penalty. Conference report is available to the public, to the members, is now before you. Douglas from Fairfax, Douglas McGuire.

[01:37:28] Thank you, Mr. Speaker. HB 1525 is the prohibition on the purchase of handguns by anyone between the ages of 18 and 20 years old. Mr. Speaker, we heard a lot today about the policies that we are considering this year around firearms and gun violence prevention and what they may or may not do.

[01:37:44] We also heard about what we can and can't do to prevent another Virginia Tech massacre, something that this body knows is very personal to me, something that those of us that day thought would be the last mass shooting or college shooting in this Commonwealth.

[01:38:00] 19 years ago, and we know that's not the case. Just this week, another college campus shooting occurred here in the Commonwealth. As we recessed in this chamber, I went up to my office to check the

news to see what the latest was on that, to find out that the news had already moved on to the next mass shooting that happened in this country on the same day.

[01:38:25] And so, I'm not going to sit on my hands and say there's nothing we can do. Criminals will be criminals. We heard about the number of deaths from cars, but let me ask you, we know that not wearing seatbelt is more likely to cause a casualty? Did we sit on our hands and say nothing we can do here? We know that speeding is more likely to kill. Did we sit on our hands and say nothing to do here? We know that distracted driving leads to more casualties. Did we sit on our hands and say nothing to do here? We know that drunk driving kills. Did we sit

[01:39:02] on our hands and say nothing to do here? But anytime we talk about the things that are actually designed and manufactured to kill people half well not quite half of this chamber turns their back sits on their hands and says nothing we can do here mr speaker i'm not willing to turn my back not willing to sit on my hands because there are things we can do and are doing and hb 1525 is one of those the conference report for hb 1525 focuses this bill on the purchase of handguns and closes the loophole that currently exists for the requirement of background checks

[01:39:39] for non-federally licensed firearm dealers when selling a handgun to an 18, 19, and 20-year-old. A reminder to this body that this is currently federal law for federally licensed firearm dealers. So if you're against that policy, I suggest you reach out to your member of Congress.

[01:39:57] But wait, Mr. Speaker, I asked the body to look at line 49, where we exempt cadets in a college ROTC program. even though that we know that it's not always true that you need a gun to fight back someone with a gun.

[01:40:14] Because those hero cadets didn't. Livu Labrescu, a Holocaust survivor, professor at Virginia Tech, didn't have a gun when he selflessly gave up his body to prevent the Virginia Tech shooter from entering his classroom and saving lives that day.

[01:40:29] So, Mr. Speaker, I move that we adopt this important conference report. Mr. Speaker, speaking to the bill. Doug has the floor. You know what? You're entitled to your own opinions but not your own facts, Mr. Speaker.

[01:40:44] Number one, there weren't two mass shootings this week. There would have been if House Bill 1524, the patron's bill, had been law because it originally struck armed security from the bill. But a mass shooting is defined by, what, three or more people killed in the same engagement?

[01:41:01] It wasn't a mass shooting because a private citizen with a legally owned firearm, which would be illegal in Virginia, If you get your way, stopped it from becoming a mass shooting. And there wasn't a mass shooting at ODU despite our disarming our ROTC cadets who absolutely, positively are not accepted and allowed to carry weapons on campus, absolutely, positively are not inside of your own opinions but not your own facts allowed to do that.

[01:41:23] And they stood up bravely with pocket knives. And that's the chutzpah that America was built on. And so we don't say, oh, there's nothing we can do to prevent gun violence. We say, how about not reducing sentences? How about deporting alien terrorists?

[01:41:40] How about enforcing the laws that are on the books? How about not eliminating mandatory minimums? And by the way, stop telling me what we can and can't do and learn the law before you try to

change it. My former law partner, Elliot Harding, has a case that's pending before the Supreme Court, I hope, wherein federal judges have ruled that it is unconstitutional to prohibit 18 to 20-year-olds from purchasing firearms, the same ones that we might draft and send off to bleed and die defending this country.

[01:42:07] We are trying to protect Virginians, and every step of the way, we're fought by people who deny the reality that you are 250 times more likely to lose a child crossing the street than you are to the very firearms that you seek to ban.

[01:42:22] I ask what the real motive is here, what the real motive is here, because if we really cared about gun violence and death from firearms, we'd be after cheap pistols, not modern sporting rifles, because they are the vast bulk of the weapons that are shedding blood needlessly on our streets.

[01:42:39] So don't say we're not saying that there's anything to be done. We're telling you what to do. Virginia exile worked. Ceasefire Virginia, 64% reduction in homicide in targeted communities. You got rid of it. It worked. Don't virtue signal to me.

[01:42:55] We want to save lives. How about you join us? Thank you, Mr. Speaker. The delegate from Sussex, Delegate Waxman. Mr. Speaker, speaking to the bill.

[01:43:11] The delegate has the floor. Mr. Speaker, I've had a loaded firearm in my personal bedroom since I was about 12 years old. I have never used it unlawfully. I have never harmed anyone with it. I truly think that we need to definitely punish those people that do unlawful things, especially with guns, as I do recognize and respect that they are highly dangerous.

[01:43:32] I have a problem with why are we taking away rights, not privileges, but rights, away from lawful citizens for the problems of the few that violate our laws. Thank you, Mr. Speaker. Shall the conference report be agreed to?

[01:43:58] Clerk will close the roll. Ayes 60, noes 37. Ayes 60, noes 37. The conference report is agreed to.

[01:44:24] Mr. Speaker, since the motion was made to request a second committee of conference, we have a communication from the Senate. Communication from the Senate.

[01:44:40] The Senate has rejected the committees of conference and requested a second committee of conference on the following legislation. House Bills 1393 and House Bill 110. Delegate from Alexandria, Delegate Heron.

[01:44:56] Mr. Speaker, I move that the House accede to the request of the Senate for a second committee of conference on the previously reported legislation. The delegate from Alexandria, Delegate Heron, moves that the House consent to the Senate's request for a cede to the Senate's request for a second committee of conference on the previously announced legislation.

[01:45:15] All those in favor say aye. All those opposed, no. The motion is agreed to. And the Speaker appoints on behalf of the House for House Bill 1393, Second Committee of Conference, conferees will be Delegates LeVere Bowling, Torian, and Kilgore.

[01:45:31] House Bill 1393, Second Committee of Conference, Delegates LeVere Bowling, Torian, and Kilgore. The Delegate from Fairfax, Delegate Simon. Mr. Speaker, I move that the House request a Second Committee of Conference for House Bill 1272, pursuant to House Rule 75B.

[01:45:47] The Delegate from Fairfax, the Delegate Simon moves that the House requests a second committee of conference on HB 1272. All those in favor say aye. Aye. All those opposed, no. HB 1272 is back in conference for a second committee of conference. The Delegate from Alexandria, Delegate Herring.

[01:46:03] Mr. Speaker, I move that the House stand in recess until 2.45. The Delegate from Alexandria, Delegate Herring, moves that the House stand in recess until 2.45. The Senate is just now. I'll let the clerk tell you all where they are. All those in favor say aye.

[01:46:22] All those opposed, no. the house is in recess until 245.

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